

HOUSE No. 2945

The Commonwealth of Massachusetts

PRESENTED BY:

Sean Reid

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to retired teachers supporting public education.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Sean Reid</i>	<i>11th Essex</i>	<i>1/13/2025</i>

HOUSE No. 2945

By Representative Reid of Lynn, a petition (accompanied by bill, House, No. 2945) of Sean Reid relative to limitations on earnings or hours for certain retired teachers. Public Service.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to retired teachers supporting public education.

Whereas, The deferred operation of this act would tend to defeat its purpose, which is to address retired teachers in the commonwealth, therefore it is hereby declared to be an emergency law, necessary for the immediate preservation of the public convenience.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 91 of chapter 32 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding the following subsection:-

3 (f) Notwithstanding subsections (b) and (c) or any other general or special law to the
4 contrary, a teacher who is receiving a pension or retirement allowance from the teachers'
5 retirement system or the Boston retirement system and who has been retired for at least 12
6 consecutive months may be re-employed in a teaching position in a public school and may
7 continue to receive their full pension or retirement allowance for a period not to exceed 2
8 consecutive school years from the date of such re-employment. During the 2-year period, any
9 limitations on earnings or hours under this section shall not apply. A retired teacher who remains
10 employed in a teaching capacity beyond this 2-year period shall be subject to all applicable

11 earnings and hour limitations provided in this section. No additional creditable service or
12 adjustments to the retirement allowance shall accrue as a result of such re-employment.

13 SECTION 2. A retired teacher re-employed prior to the effective date of section 3, as set
14 forth in section 4, shall be permitted to complete the 2-year period authorized in subsection (f) of
15 section 91 of chapter 32 of the General Laws, as seen in section 1.

16 SECTION 3. Subsection (f) of said section 91 of said chapter 32, added by section 1, is
17 hereby repealed.

18 SECTION 4. Section 3 shall take effect 5 years after the effective date of this act.